

**IN THE COURT OF APPEAL OF THE DEMOCRATIC SOCIALIST REPUBLIC
OF SRI LANKA**

In the matter of an application in Revision and/or Restitutio Integrum in terms of Article 138 and 145 of the Constitution of the Democratic Socialist Republic of Sri Lanka against the Order dated 26/11/2021 of the Learned Additional District Judge of Kalutara in case No.7099/P.

**CA/RII/Case No. 01/2022
DC Kalutara Case No.7099/Partition**

1. Eliyadura Kusumalatha Silva
2. Eliyadura Elan De Silva (Deceased)
- 2A.Fransiskudura Nimal Chandralal Silva
3. Eliyadura Saraneris Silva (Deceased)
(Presently the 19th Defendant)
- 3A.Eliyadura Pradeep Indika Silva
(Presently the 19th Defendant)
4. Eliyadura Harrison Silva
5. Eliyadura Disilin Nona
6. Eliyadura Milton Silva
(Presently 21st Defendant)
7. Eliyadura Winson Silva
8. Eliyadura Edson Silva
(Presently 20th Defendant)
9. Eliyadura Jasalin Nona
- 10.Fransiskudura Saidin De Silva
(Deceased)
- 10A.Fransiskudura Chandani De Silva

All of Managoda, Bandaragama Road,
Waskaduwa.

PLAINTIFFS

Vs.

1. Agampodi Nanasiri De Silva
2. Agampodi Padmawathi (Deceased)
- 2A. Wettamuni Sirisena Silva
3. Janguge Wimalawathi
4. Munasinghe Lionel
5. Sandradura Seelawathi Silva
(Deceased)
- 5A. Janaka Raveendra Silva
6. Walimuni Alicenona (Deceased)
- 6A. Muthumuni Namawathi Silva
No.116A, Niwdawa, Alubomulla.
7. Unnamed
8. Unnamed
9. Ranmuni Eron Silva
10. Munasinghe Nancynona Silva
11. Ranmuni Alicenona
12. Wettamuni Sirisena Silva
13. Wettamuni Janaki Jayamathi Silva
14. Wettamuni Shantha Kumara De
Silva
15. Wettamuni Nandana Prema
Kumara Silva

16. Wettamuni Pushpa Renuka
Jayamanthi Silva
17. Walichchoru Hewage Wilbert Silva
18. Munasinghe Ruvilin Silva
(Deceased)
- 18A. Munasinghe Ranjith Silva
19. Eliyadura Saraneri Silva
(Formerly 3rd Plaintiff)
- 19A. Eliyadura Pradeep Indika Silva
20. Eliyadura Edson Silva
(Formerly 8th Plaintiff)
21. Eliyadura Milton Silva (Deceased)
(Formerly 6th Plaintiff)
- 21A. Eliyadura Kusumawathi Silva

All of Managoda, Bandaragama
Road, Waskaduwa.

DEFENDANTS

AND

Sandaradura Ranjith Wimal De
Silva,
Managoda, Bandaragama Road,
Waskaduwa.

PETITIONER

Vs.

1. Eliyadura Kusumalatha Silva
2. Eliyadura Elan De Silva (Deceased)
- 2A. Fransiskudura Nimal Chandralal

Silva

4. Eliyadura Harrison Silva
5. Eliyadura Disilin Silva
7. Eliyadura Winson Silva
9. Eliyadura Jasalin Nona
10. Fransiskudura Saidin De Silva
(Deceased)
- 10A. Fransiskudura Chandani De Silva

All of Managoda, Bandaragama Road,
Waskaduwa.

PLAINTIFFS – RESPONDENTS

1. Agampodi Nanasiri De Silva
2. Agampodi Padmawathi (Deceased)
- 2A. Wettamuni Sirisena Silva
3. Janguge Wimalawathi
4. Munasinghe Lionel
5. Sandradura Seelawathi Silva
(Deceased)
- 5A. Janaka Raveendra Silva
6. Walimuni Alicenona (Deceased)
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13. Wettamuni Janaki Jayamathi Silva
14. Wettamuni Shantha Kumara De Silva
15. Wettamuni Nandana Prema Kumara Silva
16. Wettamuni Pushpa Renuka Jayamanthi Silva
17. Walichchoru Hewage Wilbert Silva
18. Munasinghe Ruvilin Silva (Deceased)
- 18A. Munasinghe Ranjith Silva
19. Eliyadura Saraneris Silva (Formerly 3rd Plaintiff)
- 19A. Eliyadura Pradeep Indika Silva
20. Eliyadura Edson Silva (Formerly 8th Plaintiff)
21. Eliyadura Milton Silva (Deceased) (Formerly 6th Plaintiff)
- 21A. Eliyadura Kusumawathi Silva

All of Managoda, Bandaragama Road, Waskaduwa.

DEFENDANTS-RESPONDENTS

AND NOW

Sandaradura Ranjith Wimal De
Silva,
Managoda, Bandaragama Road,
Waskaduwa.

PETITIONER-PETITIONER

Vs.

1. Eliyadura Kusumalatha Silva
2. Eliyadura Elan De Silva (Deceased)
- 2A. Fransiskudura Nimal Chandralal
Silva
4. Eliyadura Harrison Silva
5. Eliyadura Disilin Silva
7. Eliyadura Winson Silva
9. Eliyadura Jasalin Nona
10. Fransiskudura Saidin De Silva
(Deceased)
- 10A. Fransiskudura Chandani De Silva

All of Managoda, Bandaragama Road,
Waskaduwa.

**PLAINTIFFS-RESPONDENTS-
RESPONDENTS**

1. Agampodi Nanasiri De Silva
2. Agampodi Padmawathi (Deceased)
- 2A. Wettamuni Sirisena Silva
3. Janguge Wimalawathi

4. Munasinghe Lionel
5. Sandradura Seelawathi Silva
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16. Wettamuni Pushpa Renuka
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17. Walichchoru Hewage Wilbert Silva
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19. Eliyadura Saraneri Silva
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- 19A. Eliyadura Pradeep Indika Silva

20. Eliyadura Edson Silva
(Formerly 8th Plaintiff)

21. Eliyadura Milton Silva (Deceased)
(Formerly 6th Plaintiff)

21A. Eliyadura Kusumawathi Silva

All of Managoda, Bandaragama
Road, Waskaduwa.

**DEFENDANTS-RESPONDENTS-
RESPONDENTS**

Before: **R. Gurusinghe J.**

&

Dr. Sumudu Premachandra J.

Counsel: Thilan Liyanage with Shehan De Vas Gunawardena for
the Petitioner – Petitioner.

Nithil Fernandopulle with Asanka Lowe instructed by
Dammika Jeminige for the Plaintiff-Respondent-
Respondent.

Written Submissions: By the Petitioner on 16/06/2026.
By the 1st, 2A, 4A, 5A, 7A, 9th and 10A Respondents on
16/06/2026.

Argued On: 15/05/2026.

Judgement On: 30/06/2026.

Dr. Sumudu Premachandra J.

1] The Petitioner details a long-standing Partition Action regarding a plot of land called "Gabadawaththa", initiated in the District Court of Kalutara (DC Kalutara Case No.7099/Partition) in February 2002, with a subsequent judgement delivered on 28/11/2008, and the Interlocutory Decree entered accordingly.

2] The conflict arose on 29/01/2021, when a Licensed Surveyor attempted to execute a final survey of said partition action but allegedly entered the Petitioner's land on a pretext, removing concrete boundary posts. The Petitioner and his wife objected because a portion of their land, separately registered under the Registration of Title Act No. 21 of 1998 with a First Class Title of Absolute Ownership for lot No. 152, was wrongfully included in the Partition Corpus.

3] This resistance prompted Court summons and contempt charges under Section 793 of the Civil Procedure Code, initiated by the 9th Plaintiff-Respondent (annexed as F and G, alongside responding documents R1 and R2).

4] In response, the Petitioner filed an application under Section 839 of the Civil Procedure Code seeking the exclusion of his registered land from the Corpus and requesting a commission to superimpose Plan No. 299 onto the Map (supported by annexed documents P1-P8, H, P3, P7, I, and J).

5] On 26/11/2021, the Additional District Judge of Kalutara dismissed the Petitioner's Section 839 application, holding Per Incuriam that the Petitioner and his wife should be named as accused parties in the contempt matter, and ruling that the application could not be maintained under the Registration of Title Act (with the proceedings and Order annexed as K, L, and journal entries as M).

6] The Petitioner seeks Revision or Restitutio in Integrum from the Court, asserting that proceeding with the Partition scheme would lead to the irreversible demolition of his residence's western boundary wall and the loss of roughly 2 perches of land.

7] Along with the Petition, certified copies of the original Complaint and amended caption marked as A and A1, a preliminary survey plan (No. 3434) and report marked as B and B1 (and further detailed as P1, P2, and H), alongside the judgement and amended Interlocutory Decree marked as C and D are annexed. Following objections to an initial final scheme of Partition (Plan No. 4005), a settlement led to an alternative Partition scheme prepared by Licensed Surveyor D. Lasantha Hewagama (Plan No. 299 dated 10/09/2012), which is annexed to the Petition as document E.

8] In the above backdrop, the Petitioner prays that this Court be pleased to;

- a) Issue Notice on the Respondents;
- b) Grant an Interim Order staying further proceedings in the case bearing No. 7099/P in the District Court of Kalutara until the final determination of this application;
- c) Make Order revising and/or setting aside the Order dated 26/11/2021 which had been delivered by the learned Additional District Judge of Kalutara in the above case;
- d) Make Order adding the Petitioner as a Defendant to this action for the limited purpose of the Petitioner been permitted to take the necessary steps required to be granted an exclusion of the land he is entitled to in terms of the Registration of Title Act No.21 of 1998 from the Corpus sought to be partitioned in this case;

- e) Make Order permitting the Petitioner to take the necessary steps in the above case to issue a commission to identify the extent of his land that had been erroneously included into the Corpus;
- f) Make Order amending or modifying the judgement and the Interlocutory Decree entered in the above case in so far as to exclude the extent of the Petitioner's land which is more fully described in the third schedule of the Petition filed on behalf of the Petitioner as prayed for and in terms of his application made under Section 839 of the Civil Procedure Code (Document "H");
- g) Make Order in this case restoring and/or recognising the legal rights that the Petitioner had been vested with in terms of the Registration of Title Act No.21 of 1998;
- h) Make Order revising and/or setting aside all steps/ proceedings/ Orders made and taken with regard to the carrying out of the final survey in the above case;
- i) Grant costs;
- j) For such other and further relief Your Lordships' Court shall deem fit.

9] The Respondents deny the claims made in the Petitioner's application. They outline numerous preliminary legal objections asserting that the application is misconceived in law, represents an abuse of the court process to harass the Respondents, and should be dismissed in limine (at the threshold). They argue the Petitioner is guilty of laches (unreasonable delay) and has deliberately suppressed and misrepresented material facts from a related Partition case (No. 7099/P) in the District Court of Kalutara.

10] They show an escalation of this application, where a charge sheet for contempt of court was issued against the Petitioner and his wife following an illegal encroachment on an access road. To support their arguments, the Respondents submit the evidence, including a Primary Courts Procedure Act Magistrate's Order (marked V1) and a Village Plan (marked V2), which confirms the separate nature of their adjoining lands.

11] The Petitioner says that he only discovered the attachment of his land to the Partition action when a Surveyor and Police Officer entered his land in January 2021 and attempted to remove concrete posts on his Eastern boundary. He stressed that the Certificate of Title that grants him the right to exclude his land from the Partition, an alleged contempt of court charge under Section 793 of the Civil Procedure Code, and a separate revision application (Case No. RV 11/2022) filed in the High Court of Kalutara challenging a Primary Courts Procedure Act Order.

12] On perusal of the Partition action No. 7099/P, instituted by the Original Plaintiffs in the District Court of Kalutara, it is seen that all statutory steps under the Partition Law, including the registration of "Lis Pendens" and the preparation of the preliminary plan, were duly followed.

13] The Judgement was delivered on 28/11/2008, determining the Corpus and shares, against which no Appeal, Revision, or Restitutio-in-Integrum application was preferred against the said Decree. However, during the final survey, the Petitioner objected, claiming that the survey encroached upon his land, leading to contempt of court proceedings against him. The Petitioner then sought relief in the District Court under Section 839 of the Civil Procedure Code to exclude his land, leading to the current Revision and Restitutio-in-Integrum application challenging the District Judge's refusal.

14] The Petitioner's primary contention is that a Certificate of Title issued under the Registration of Title Act, No. 21 of 1998, takes supremacy over the Partition Action and that his land was unlawfully included in the Corpus.

15] This court sees that the Petitioner's claims are uncertain, as his own Petition and Affidavit conflict regarding the exact extent of land allegedly encroached upon, varying from "approximately 2 perches" to other irreconcilable extents. It is further seen that the Petitioner has failed to obtain a commission and prepare a superimposed plan to identify the overlapping portions, and it would be a mere assertion that his land, subject to a first-class title, has been encroached upon in the Partition action.

16] The Petitioner admits that the impugned Partition action was filed in the year 2000, and his first-class Title Certificate was given well after 07/03/2019. (vide I). The preliminary survey was carried out on 08-09th June 2001. It is seen that, at the preliminary survey, the new claimant, Eron Silva, had made his claim. (Vide B1). Further, when the Partition action was filed, his title had not been cleared under Registration of Title Act.

17] Moreover, if the Petitioner's land was encroached, he would have objected at the preliminary survey. Now, after the Interlocutory Decree was entered, the Petitioner has stated that approximately two perches were encroached upon. This claim was made at the final survey, well after the Interlocutory Decree. Thus, the Petitioner is guilty of laches.

18] In **Sri Lanka Insurance Corporation Ltd. v. Shanmugam and Another**, [1995] 1 SLR 55, His Lordship Ranaraja J noted the following, where the party slept over his rights as;

*“The principle on which this court has to act is not whether the court that gave judgment was tricked into it, but whether one party to action was deceived by the conduct of the opposing party. Clearly it was not the case in this instance. **It was entirely due to the lack of due diligence on the part of the petitioner that it took no steps** to file answer. Thereafter it failed to file the necessary papers within the stipulated period to have the decree set aside. Had the petitioner filed its answer at the proper time, it could have taken up all the defences which it claims would have deprived the respondents of the judgment obtained in their favour. Thus, it cannot now complain of a denial of justice.”* [Emphasis is added]

19] It should be noted that the Interlocutory Decree was entered in 2011. The effect of Interlocutory Decree is considered in **Madurapperuma v Wijesundara and Others** 2019 (1) SLR 512, which established that a District Court has no Jurisdiction to vary its own judgement or restrict a settled Corpus using inherent powers once an Interlocutory Decree has achieved finality under Section 48(1) of the Partition Law. His Lordship SAMAYAWARDHENA, J. noted;

“Section 48(1) of the Partition Law invests Interlocutory and Final Decrees of partition with finality notwithstanding any omission or defect of procedure (subject to sub-sections (4) and (5) of section 48; and any decision on any appeal which may be preferred).”

20] The Petitioner is not a party to the Partition action. In **Perera vs Wijewickrama** 15 NLR 411, Pereira J. held that;

“the remedy of restitutio in integrum can only be availed of by one who is actually a party to the contract or legal proceeding in respect of which restitution is desired.”

21] Thus, the Petitioner cannot directly dispute the final scheme of Partition. In **Menchinahamy vs Munaweera**, 52 NLR 409, held as follows;

“The remedy by way of restitutio in integrum is an extraordinary remedy and is given only under very exceptional circumstances. It is only a party to a contract or to legal proceedings who can ask for this relief. The remedy must be sought for with the utmost promptitude. It is not available if the applicant has any other remedy open to him”

22] As noted above, the Petitioner ought to have made the claim at the preliminary survey; thus, this remedy is not available for him.

23] The documents show that the District Court of Kalutara action is filed to Partition a land called “Gabadawaththa” (Document "A"). After a judgement and an amended Interlocutory Decree were delivered in November 2008 (Documents "C" and "D") and an alternative Partition scheme was settled in September 2012 (Document "E").

24] I now consider the statutory protection afforded to the Petitioner under the Registration of Title Act, No. 21 of 1998. The Petitioner holds a Certificate of Title granting him a First Class Title of Absolute Ownership over Lot No. 152 on Map

No. 530164, issued by the Surveyor General and declared by the Commissioner of Title Settlement. Under Section 32(1) of the Act, such registration vests absolute ownership of the land parcel along with all rights and privileges free from all unexpressed interests. Furthermore, Section 33(1) and 33(2) dictate that entries in the Title Register serve as conclusive evidence of ownership that cannot be questioned or assailed in a court of law except as provided directly within the Act.

25] However, the Petitioner's land was not subjected to Partition. It was a boundary dispute between the Petitioner's land and the land sought to be Partitioned. Thus, the issue of the title cannot be considered. Though, the Petitioner emphasizes the supremacy of the Registration of Title Act over the Partition Act by citing explicit statutory provisions, it has no direct impact when the issue of boundaries is concerned.

26] Under Section 63 of the Registration of Title Act, No. 21 of 1998, the Partition Law does **not apply** to land parcels registered with a First Class Title of Absolute Ownership or a Second Class Title. If a land is already governed by the Act, Partition actions cannot be filed to exclude or partition it. The section says;

“63. The Partition Act shall not apply to land parcels registered under this Act with a First Class Title of Absolute Ownership, or Second Class Title of Ownership.”

27] This is to say that any disputes regarding boundaries, rights, or exclusion of lands that hold a Title Certificate must be resolved through the Commissioner of Title Settlement, rather than through a Partition lawsuit in the District Court. If any party dissatisfied the decision of the Commissioner of Title Settlement, that party can appeal to the pertinent District Court. (See section 22 and 29 of Registration of Title Act, No. 21 of 1998)

28] In the instant application, when the Partition Decree was entered in 2011, the Petitioner's title was in dispute; that is, no Title Certificate was granted. Thus, section 63 of Registration of Title Act, No. 21 of 1998 has no application

to this as the issue is to be decided at the date of institution of the Partition case. (Vide **Talagune v De Livera**, [1997] 1 Sri LR 253). Moreover, the dispute is not for title of each land, it is for boundaries. Thus, supremacy under the Title Registration Act is immaterial.

29] It is to be noted that in Title Registration Act cases, the District Court is vested with Appellate Jurisdiction. The Title Registration Act provides a scheme for dispute resolution. Thus, the Petitioner has an alternative remedy. On the other hand, the issue of a conflict between the two Acts does not arise due to this factual uncertainty, and the Petitioner must suffer the consequences of his own folly. Further, this court is of the view that the inherent powers under Section 839 of the Civil Procedure Code cannot be widely invoked to displace the strict statutory framework of the Partition Law.

30] The impugned Partition subject matter and the Petitioner's land are two distinct, adjacent lots; no title dispute is involved. Granting relief is a discretionary remedy of this court. Considering the finality of the Partition Decree, the guilt of the Petitioner to claim the land at the preliminary survey and laches for 11 years, for not filing this suit, we decline to exercise the discretion.

31] Therefore, the application is dismissed. No costs.

JUDGE OF THE COURT OF APPEAL

R. GURUSINGHE J.

I agree

JUDGE OF THE COURT OF APPEAL